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|  | <p><b>ICC Collision Center</b></p> <p>2026-01560581</p> | <p>entered on September 18, 2025, against respondent ICC Collision Center dba Autobahn Collision Center, Inc. For the reasons set forth below, the petition is <b>DENIED WITHOUT PREJUDICE</b>.</p> <p>This petition originally came on for hearing on July 16, 2026. Prior to that hearing, the court posted a tentative ruling to continue the hearing to today's date because there was no proof of service showing service on any notice of hearing. There were no appearances and the tentative became the final ruling. Specifically, the July 16<sup>th</sup> Minute Order stated:</p> <p>"Before the court is the petition by Unifirst Corporation (Petitioner) to confirm contractual arbitration award in the amount of \$67,026.10 entered on September 18, 2025, against respondent ICC Collision Center dba Autobahn Collision Center, Inc. (Respondent). As more fully set forth below, the petition is <b>CONTINUED TO SEPTEMBER 10, 2026, AT 2:00 P.M. IN DEPARTMENT C23</b>, for service of proper notice of hearing.</p> <p>"The petition to confirm an arbitration award and the notice of hearing on such petition must be served at least 10 days before the hearing. (Code Civ. Proc., §§ 1290.2, 1290.4.) Proof of such service must be filed with the court at least five court days before the hearing. (Cal. Rules Ct., rule 3.1300(c).)</p> <p>"Here, Petitioner failed to timely file any proof of service showing proper service of notice of hearing on Respondent. The proof of service Petitioner filed shows Respondent was served with the summons, civil case coversheet, and petition to confirm contractual arbitration award. Petitioner has not filed any notice of this hearing or proof of service showing Respondent was served with notice of the hearing. The court served notice on Petitioner, but it cannot serve Respondent because Respondent has not yet appeared and therefore has no address of record.</p> <p>"Based on the foregoing, the Court will <b>CONTINUE</b> the hearing as set forth above for Petitioner to provide proper notice of hearing to Respondent. The proof of service must be filed at least five court days before the hearing."</p> <p>Petitioner has not filed a notice of continued hearing, a new proof of service, or any other documents since the last</p> |
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|    |                                                                          | <p>hearing. As such, there remains nothing showing Respondent was given notice of any hearing on the petition.</p> <p>Based on Petitioner's failure to give proper notice of hearing despite the court providing an additional opportunity, the petition is <b>DENIED WITHOUT PREJUDICE</b>.</p> <p>Petitioner's counsel is ordered to give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 6. | <p><b>Asvadi vs. Clear Vision Financial LLC</b></p> <p>2026-01581101</p> | <p>Before the court is the "Joint Petition for Order 1) Confirming Termination of Arbitration Proceedings, 2) Statutory Sanctions, Attorneys' Fees, and Costs Pursuant to C.C.P. §§ 1287.98 &amp; 1281.99; and 3) Order Maintaining Joinder and Denying Severance" filed by petitioners Amin Asvadi, Ramiro Castillo, Joseph Chavez, Abdon Garay, Aracely Gonzalez, Uriah Molle, John Park, Manuel Sepulveda, and Erik Venters (collectively, Petitioners) against respondent Clear Vision Financial, LLC, d/b/a Liberty1 Financial (Respondent).</p> <p>As more fully set forth below, the petition is <b>GRANTED IN PART, CONTINUED IN PART</b>, and <b>DENIED IN PART</b>. The petition is <b>GRANTED</b> as to the request to withdraw from arbitration and permit Petitioners to pursue their claims against Respondent in court despite the existence of their arbitration agreements. The petition is <b>GRANTED</b> as to the requests for attorney fees, costs, expenses, and monetary sanctions under sections 1281.98, subdivision (c), and 1281.99, subdivision (a), and <b>CONTINUED TO THURSDAY, DECEMBER 3, 2026, AT 2:00 P.M., IN DEPARTMENT C23</b>, for further briefing as to the amount of attorney fees, costs, expenses, and monetary sanctions. The petition is <b>DENIED</b> as to the request for evidentiary and terminating sanctions under section 1281.99, subdivision (b). Finally, the petition is <b>DENIED WITHOUT PREJUDICE</b> as to the request for an order maintaining joinder and denying severance.</p> <p><u>Withdrawal From Arbitration:</u> Code of Civil Procedure section 1281.98, subdivision (a)(1), declares an employer is in material breach of an arbitration agreement, is in default of arbitration and waives its right to compel an employee to proceed with arbitration if the employer fails to timely pay the fees necessary to proceed with the arbitration. Specifically, that subdivision states, "In an employment or consumer arbitration that requires, either expressly or through application of state or federal law or the rules of the arbitration provider, that the drafting party pay certain fees and costs during the pendency of an arbitration proceeding, if the fees or costs required to continue the arbitration proceeding are not paid within 30 days after the</p> |